CUSTOMER SERVICE / CLAIM QUESTIONS, CALL US AT (385)505-4256	MARINE MAINTENANCE PLAN NEW CLIENT ENROLLMENT FORM	WHITESTONE PARTNERS
AGREEMENT NUMBER		
AGREEMENT DATE:		

MAINTENANCE PLAN HOLDER INFORMATION

FIRST NAME:	LAST NAME:	M.I.
MAILING ADDRESS:	EMAIL ADDRESS:	

CITY:	STATE:	ZIP:	PHONE #:

LIENHOLDER INFORMATION

LIEN HOLDER:

MAILING ADDRESS:

CITY:	STATE:	ZIP:	PHONE #:

SELLING DEALERSHIP INFORMATION

SELLING DEALERSHIP NAME:

MAILING ADDRESS:

CITY:	STATE:	ZIP:	PHONE #:

VESSEL INFORMATION

HIN:	YEAR:	MAKE:	MODEL:	NEW: ☐	Used: ☐
ENGINE 1: SERIAL #	YEAR:	MAKE:	MODEL:	ENGINE HOURS:	
ENGINE 2: SERIAL #	YEAR:	MAKE:	MODEL:	ENGINE HOURS:	

MAINTENANCE COVERAGE SELECTION

TERM SELECTION

12 MONTH	24 MONTH	36 MONTH
☐	☐	☐

AGREEMENT PURCHASE PRICE: _____ AGREEMENT PURCHASE DATE: _____

SERVICE STRUCTURE

The Selling Dealer listed above will perform the following Maintenance Benefits to Your Vessel during the term of this Maintenance Agreement based on the program and term selected by You in SECTION 5 - MAINTENANCE COVERAGE SELECTION. Covered Services are provided based on manufacturer-recommended intervals and engine hour usage during the Agreement term. The number of services performed may vary depending on usage and does not guarantee a fixed number of service events.

DE-WINTERIZATION	IMPELLER SERVICE	ENGINE OIL SERVICE	FUEL FILTER SERVICE	TRANSMISSION OIL SERVICE	OUTDRIVE SERVICE	SHAFT ALIGNMENT	WINTERIZATION	V-DRIVE SERVICE	BALLAST CARTRIDGE SERVICE
YEARLY	BEGINNING OF SEASON	YEARLY	N/A	YEARLY	YEARLY	YEARLY	YEARLY	YEARLY	N/A
N/A	EVERY 50 HOURS	EVERY 50 HOURS	EVERY 150 HOURS	EVERY 100 HOURS	EVERY 150 HOURS	EVERY 150 HOURS	N/A	EVERY 200 HOURS	EVERY 100 HOURS

MAINTENANCE PLAN HOLDER ACKNOWLEDGEMENT

1. YOU ARE NOT REQUIRED TO ENTER INTO THIS MAINTENANCE AGREEMENT IN ORDER TO PURCHASE, LEASE, OR OBTAIN FINANCING FOR THIS VESSEL
2. This Maintenance Agreement contains two documents: this Enrollment Form and a coverage document which contains all the additional terms, conditions, and exclusions governing this Maintenance Agreement. This Enrollment form and the coverage together complete the Maintenance Agreement. You should read this entire Maintenance Agreement carefully. It contains the entire agreement between You and Us. It takes precedence over any other written or oral statements made to You with respect to this Maintenance Agreement. Any modification(s) or change(s) to the preprinted terms and conditions of this Maintenance Agreement is/are invalid and of no force or effect.
3. This Maintenance Agreement is between You and the obligor (We, Us, Our) as defined in Section 1. DEFINITIONS
4. Provisions concerning Your responsibilities are listed in Section 8. OWNERS OBLIGATIONS
5. This Maintenance Agreement is not a policy of insurance issued to You. It is a service contract / prepaid maintenance agreement. However, the obligations of the Provider under this Maintenance Agreement are insured under a service contract reimbursement insurance policy issued by Kinsale Insurance Company (the "Insurance Company"). P.O. Box 17008 Richmond, VA 23226. If a covered claim is not paid within sixty (60) days after proof of loss has been filed, You may file a claim directly with the Insurance Company. Please call (804)289-1300 for instructions.
6. By Your signature below, You hereby acknowledge that You have been given the opportunity to read the entire Maintenance Agreement and that any dispute arising out of or relating to this Maintenance Agreement or the breach thereof, shall be resolved by binding arbitration.

SIGNATURES

MAINTENANCE PLAN HOLDER SIGNATURE: _____ DATE: _____

DEALER AUTHORIZED SIGNATURE: _____ DATE: _____

CALIFORNIA CUSTOMERS: YOU MUST BE PROVIDED A COPY OF THE OWNER'S MANUAL AT TIME OF PURCHASE

WHITESTONE PARTNERS - MARINE MAINTENANCE PLAN AGREEMENT

This Marine Maintenance Plan Agreement ("Agreement") is entered into as of the date of purchase set forth in the Enrollment Form (the "Effective Date"), by and among Whitestone Partners ("Provider"), the authorized participating dealer identified in the Enrollment Form ("Dealer"), and the purchaser identified therein ("Owner").

1. DEFINITIONS

1.1 "Agreement, Maintenance Agreement" means this document, the Enrollment Form, and any exhibits or materials incorporated herein.

1.2 "Covered Vessel" means the watercraft identified in the Enrollment Form.

1.3 "Covered Services" means only those services expressly listed in Section 4.

1.4 "Dealer" means a service provider authorized by Provider.

1.5 "Effective Date" means the date of Plan purchase.

1.6 "Enrollment Form" means the executed purchase document.

1.7 "Engine Hours" means verifiable engine runtime.

1.8 "Owner" means the purchaser of the Plan.

1.9 "Plan" means this prepaid maintenance program.

1.10 "Provider" means Whitestone Partners and its affiliates, successors, and assigns.

1.11 "Obligor," "We," "Us," and "Our" mean Whitestone Partners, LLC, the entity legally obligated to perform under this Agreement.

1.12. "You, Your" means the agreement holder as shown on the Enrollment Form

2. PLAN NATURE & REGULATORY CLASSIFICATION

2.1 This Plan is a prepaid maintenance program and service contract providing routine maintenance services only. This Agreement is not a policy of insurance issued to the Owner. However, the Provider's obligations under this Agreement are insured under a service contract reimbursement insurance policy where required by applicable law.

2.2 This Agreement shall be interpreted and administered in accordance with the laws of the state in which it is sold, including classification as a service contract, maintenance agreement, or other regulated product where required by law.

2.3 Where any jurisdiction requires licensing, registration, reimbursement insurance, or financial security, Provider shall comply as required.

2.4 This Plan does not cover mechanical breakdowns except where required by applicable law.

3. TERM

3.1 Coverage begins on the Effective Date.

3.2 Coverage continues for the term selected (1, 2, or 3 years).

3.3 Coverage terminates automatically upon expiration.

3.4 Unused services expire upon termination of this Agreement. Any applicable refund rights are governed by Section 6 (Cancellation and Refund Policy) and applicable state law.

4. COVERED SERVICES

Provider shall pay for parts and labor associated with the following:

De-Winterization (annually)
Impeller Service (seasonally and every 50 Engine Hours)
Engine Oil Service (annually and every 50 Engine Hours)
Fuel Filter Service (every 150 Engine Hours)
Transmission Oil Service (annually and every 100 Engine Hours)
Outdrive Service (annually and every 100 Engine Hours)
Shaft Alignment (annually and every 150 Engine Hours)
Winterization (annually)
V-Drive Service (annually and every 200 Engine Hours)
Ballast Cartridge Service (every 100 Engine Hours)

4.1 Provider retains reasonable discretion in determining the timing and applicability of Covered Services based on manufacturer guidelines, service intervals, and documented engine hours. Such discretion shall be exercised in a commercially reasonable manner consistent with industry standards.

4.2 Services shall align with manufacturer recommendations or accepted industry standards.

4.3 Covered Services are limited to the service intervals listed above or a maximum number of occurrences per service based on the selected term, whichever occurs first. Under no circumstances shall Covered Services exceed commercially reasonable frequency based on manufacturer recommendations and industry standards.

5. SERVICE PERFORMANCE

5.1 Services must be performed by an authorized Dealer unless otherwise approved.

5.2 Scheduling is subject to availability.

5.3 Transportation, storage, and convenience fees are not covered.

5.4 Services are subject to Section 11 (Authorization).

5.5 Dealers must follow Provider program standards.

5.6 Where required by law, Provider may authorize reimbursement or third-party service.

6. PAYMENT, CANCELLATION & REFUND POLICY

Cancellation and refund rights are governed exclusively by the "Cancellation and Refund Policy" section contained in this Agreement. In the event of any conflict, that section shall control.

7. EXCLUSIONS

7.1 Coverage is limited strictly to Covered Services.

7.2 Not covered under this Agreement includes, but is not limited to:

- Mechanical failures
- Defective parts or component replacement
- Cosmetic work
- Aftermarket modifications
- Damage caused by misuse, neglect, accident, or environmental conditions
- Any services not expressly listed as Covered Services

7.3 Exclusions apply except where prohibited by law.

8. OWNER OBLIGATIONS

You agree to have all Maintenance Benefits authorized by Us and performed at the Selling Dealership, or other dealership authorized by Us. You must obtain authorization from the Administrator prior to any services being provided.

You agree to Engine Hour verification at the Selling Dealership, or other dealership authorized by Us.

You agree to maintain accurate readings of Engine(s) Hours.

8.1 Fraud or tampering may result in termination to the extent permitted by law.

8.2 Engine Hour Verification: Engine Hours must be verifiable through reasonably reliable means, including but not limited to onboard engine systems, dealer service records, or diagnostic tools. In the event Engine Hour data is unavailable, inaccurate, or disputed, Provider may reasonably estimate service intervals based on available information, usage patterns, or inspection results. Such determination shall be made in good faith and in accordance with industry standards. Such determinations shall be made in good faith, in a commercially reasonable manner consistent with industry standards, and shall not be arbitrary or capricious.

9. TRANSFERABILITY

This Agreement may be transferred to a subsequent owner of the Covered Vessel subject to Provider approval, applicable transfer fees, and compliance with transfer procedures. Provider may require inspection or verification of condition prior to transfer.

Transfer rights may be limited or prohibited where required by law.

10. RELATIONSHIP OF PARTIES

10.1 The Dealer is an independent contractor and is not an agent, partner, or employee of Provider. Dealer is solely responsible for the performance, quality, and workmanship of all services performed.

10.2 Provider's role is limited to administration of the Plan and payment for Covered Services. Provider is not responsible for the quality, timing, or workmanship of services performed by the Dealer, except to the extent required by applicable law.

10.3 Any disputes regarding service quality or workmanship must be resolved directly between Owner and Dealer.

11. SERVICE AUTHORIZATION

11.1 Routine services within intervals do not require pre-authorization.

11.2 Exceptions require Provider approval.

11.3 Failure to obtain approval may result in denial.

11.4 Provider may audit claims.

11.5 Owner is not liable for Dealer failure to obtain authorization.

11.6 Provider may standardize claims procedures nationally.

12. LIMITATION OF LIABILITY

12.1 Liability shall not exceed Plan purchase price to the fullest extent permitted by applicable law.

12.2 Provider is not liable for indirect or consequential damages.

12.3 Warranty disclaimers apply except where prohibited.

12.4 No Warranty; No Guarantee of Performance
The services provided under this Agreement are routine maintenance services only. Provider does not warrant or guarantee the mechanical condition, performance, or future operation of the Covered Vessel. This Agreement does not extend, modify, or replace any manufacturer warranty. Maintenance services performed under this Agreement are not intended to prevent all mechanical failures.

13. INDEMNIFICATION

Owner agrees to indemnify and hold harmless Provider and Dealer from and against any claims, damages, or liabilities arising from Owner's misuse, negligence, failure to maintain the Covered Vessel, or unauthorized modifications, except to the extent such claims arise from the gross negligence or willful misconduct of Provider or Dealer, or where otherwise prohibited by law.

14. FORCE MAJEURE

Provider is not liable for delays due to events beyond its control.

15. DISPUTE RESOLUTION

15.1 Informal Resolution: Prior to initiating arbitration, the parties agree to attempt to resolve disputes informally.

15.2 Arbitration Agreement: Except where prohibited by applicable law, any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Consumer Arbitration Rules.

15.3 Small Claims Option: Either party may bring an individual claim in small claims court where jurisdiction permits.

15.4 Class Action Waiver: Claims may only be brought in an individual capacity and not as part of any class or representative proceeding, to the fullest extent permitted by law.

15.5 Opt-Out Right: Owner may opt out of this arbitration provision by providing written notice within thirty (30) days of purchase. Such notice must be sent to Whitestone Partners at the address listed in this Agreement and must include the Owner's name, Agreement number, and a clear statement of intent to opt out of arbitration.

15.6 Venue: Arbitration shall occur in the Owner's state of residence unless otherwise required by law.

15.7 Governing Law: Arbitration shall be governed by the Federal Arbitration Act where applicable.

16. GOVERNING LAW

This Agreement is governed by the laws of the Owner's state at purchase.

17. ASSIGNMENT

Provider may assign this Agreement. Owner may not assign this Agreement except where required by applicable law.

18. ENTIRE AGREEMENT

This Agreement and Enrollment Form constitute the entire agreement.

19. EXECUTION

This Agreement may be executed electronically and in counterparts.

20. UNIFORM COMPLIANCE / SAVINGS CLAUSE

20.1 This Agreement is intended to comply with all applicable U.S. laws.

20.2 Any provision conflicting with law shall be automatically modified to comply.

20.3 Required consumer rights are deemed included even if not expressly stated.

21. GEOGRAPHIC LIMITATIONS

Services are intended within Provider's Dealer network. If unavailable, Provider may authorize alternatives.

22. REGULATORY COMPLIANCE

Provider may maintain insurance, reserves, or partnerships as required by law.

23. CONSUMER DISCLOSURE

THIS PLAN PROVIDES PREPAID MAINTENANCE SERVICES.
IT IS NOT INSURANCE EXCEPT WHERE REQUIRED BY LAW.
IT DOES NOT COVER MECHANICAL BREAKDOWN EXCEPT WHERE REQUIRED BY LAW.

24. STATE-SPECIFIC DISCLOSURES (UNIVERSAL CLAUSE)

Certain states require specific disclosures, notices, or provisions.
Any such requirements are automatically incorporated and shall control where applicable.
Provider may deliver such disclosures:
In the Enrollment Form
At point of sale
Via electronic or written notice

25. REQUIRED DISCLOSURES

26. PROGRAM ADMINISTRATION AND MODIFICATIONS

Provider reserves the right to modify administrative procedures, service processes, authorized dealer network, and program requirements on a prospective basis, provided such modifications do not materially reduce the Covered Services purchased under this Agreement.

Any such changes shall be made in compliance with applicable law.

Obligor:
Whitestone Partners, LLC
P.O. Box XXXXX
Draper, UT 84020
(385)505-4256
support@whitestone-partners.com
www.whitestone-partners.com

Administrator:
SAME AS OBLIGOR

Insurance Backing:

This Agreement is insured under a service contract reimbursement insurance policy issued by:

Kinsale Insurance Company
P.O. Box 17008
Richmond, VA 23226

If the Provider/Obligor fails to perform or pay any claim within sixty (60) days after proof of loss has been filed, the Owner may file a claim directly with the insurer.

CANCELLATION AND REFUND POLICY

1. Right to Cancel (Free Look Period)

You may cancel this Agreement within thirty (30) days of the effective date by providing notice to Whitestone Partners.
If no services have been rendered, you will receive a full refund of the total purchase price.

If services have been rendered during this thirty (30) day period, Whitestone Partners may deduct the reasonable value of such services from the refund, unless otherwise prohibited by applicable state law, in which case a full refund will be provided as required.

2. Cancellation After Thirty (30) Days

You may cancel this Agreement at any time after thirty (30) days from the effective date by providing notice to Whitestone Partners.
Upon cancellation, you will receive a pro-rata refund of the unearned portion of the Agreement based on the time remaining in the term, unless applicable state law requires an alternative calculation method, in which case such law shall control.
Whitestone Partners may deduct the reasonable value of any services rendered, where permitted by applicable law.
All refunds will be calculated and paid in accordance with applicable state laws and regulations, which may supersede the general refund methodology described herein.

3. No Cancellation Fees Charged to Customer

You will not be charged any cancellation fee or penalty in connection with the cancellation of this Agreement, except where such fees are expressly permitted by applicable state law.

4. Refund Responsibility

Whitestone Partners is the obligor under this Agreement and is solely responsible for ensuring that all refunds due under this Agreement are paid to you in accordance with its terms and applicable law.
Refunds will be issued directly by Whitestone Partners or its designated administrator.

5. Dealer Participation and Pricing

The purchase price of this Agreement may include amounts retained by the selling dealer. Dealer participation, including pricing, margin, and any compensation paid to dealer personnel, is governed by separate agreements between Whitestone Partners and the dealer.
Such arrangements do not affect your rights under this Agreement, including your right to cancel and receive a refund as described herein.

6. Administrative Fees Between Whitestone Partners and Dealer

Whitestone Partners may assess administrative or program-related fees to participating dealers in connection with cancellations, as set forth in separate agreements with such dealers.
No such fees will be charged to you or deducted from your refund.

7. State Law Compliance

This Agreement is intended to comply with the laws of the state in which it was purchased.
If any provision of this Cancellation and Refund Policy conflicts with applicable state law, such law shall control, and this Agreement shall be deemed amended to conform to the minimum requirements of such laws.

State Law Notice:
This Agreement is intended to comply with all applicable state laws.
Any additional rights or disclosures required under your state are hereby incorporated and shall apply.

CALIFORNIA STATE ADDENDUM

CALIFORNIA STATE DISCLOSURES
This Addendum applies to Agreements sold in the State of California and supersedes any conflicting provisions.

1. REGULATORY CLASSIFICATION
This Agreement is intended to comply with applicable California law, including but not limited to the Song-Beverly Consumer Warranty Act and related service contract regulations.

2. CANCELLATION RIGHTS
If You cancel this Agreement within 60 days of the Effective Date:
You are entitled to a full refund if no services have been provided
If services have been provided, the refund may be reduced by the reasonable value of services rendered

After 60 days:
You are entitled to a pro-rata refund, less:
The value of services rendered
A cancellation fee not to exceed $25 or 10%, whichever is less

3. INSURANCE BACKING
Obligations under this Agreement are insured under a service contract reimbursement policy.
If the Provider fails to pay a claim within 60 days, You may file directly with the insurer.

4. TRANSFER RIGHTS
This Agreement is transferable to a subsequent owner upon:
Notice to Provider
Payment of a reasonable transfer fee (if applicable)

5. ARBITRATION
Arbitration provisions apply only to the extent permitted under California law.

FLORIDA STATE ADDENDUM

FLORIDA SERVICE CONTRACT DISCLOSURES
This Addendum applies to Agreements sold in Florida and supersedes conflicting provisions.

1. REGULATION
This Agreement is a service contract regulated under Florida Service Warranty Association Act.

2. FREE LOOK PERIOD
You may cancel this Agreement within:
10 days (if received at time of sale), or
20 days (if delivered by mail)
→ **For a full refund with no deductions**

3. CANCELLATION AFTER FREE LOOK
After the free look period:
You are entitled to a pro-rata refund, less:
Claims paid
An administrative fee not exceeding 10%

4. INSURER DIRECT CLAIM
If the Provider fails to perform, You may file directly with the reimbursement insurer.

5. NON-RENEWAL / TERMINATION
Provider may not cancel except for:
Non-payment
Fraud
Material misrepresentation

6. SERVICE WARRANTY ASSOCIATION (IF APPLICABLE)
If administered through a licensed entity, all obligations comply with Florida financial responsibility requirements.

TEXAS STATE ADDENDUM

TEXAS SERVICE CONTRACT DISCLOSURES
This Addendum applies to Agreements sold in Texas.

1. REGULATION
This Agreement is regulated under Texas Service Contract Act.

2. FREE LOOK PERIOD
You may cancel within:
30 days for a full refund

3. CANCELLATION AFTER 30 DAYS
You are entitled to a:
Pro-rata refund, less:
Claims paid
Administrative fee not exceeding 10%

4. INSURER BACKING
If the Provider fails to perform obligations, You may file directly with the insurer.

5. UNAUTHORIZED SERVICE
Repairs performed without authorization may not be covered.

6. COMPLAINTS
Unresolved complaints may be directed to:
Texas Department of Licensing and Regulation (TDLR)

NEW YORK STATE ADDENDUM

NEW YORK SERVICE CONTRACT DISCLOSURES
This Addendum applies to Agreements sold in New York.

1. REGULATION
This Agreement is governed by New York Service Contract Law.

2. FREE LOOK PERIOD
You may cancel within:
20 days of mailing, or
10 days if delivered at sale
→ **For a full refund**

3. CANCELLATION AFTER FREE LOOK
You are entitled to:
Pro-rata refund, less:
Claims paid
Administrative fee not exceeding 10%

4. TERMINATION LIMITS
Provider may cancel only for:
Non-payment
Fraud
Material misrepresentation

5. INSURER RESPONSIBILITY
If Provider fails to perform, the insurer is directly responsible to the Owner.

6. ARBITRATION LIMITATIONS
Arbitration provisions apply only to the extent permitted under New York law.

7. COMPLAINTS
Consumers may contact:
New York State Department of Financial Services (DFS)